Form No. INC-13

e-MOA (e-Memorandum of Association)

[Pursuant to sections 4 and 8 of the Companies Act, 2013 and rules made thereunder read with Schedule I]



Form language

(•) English ( ) Hindi

Refer instruction kit for filing the form

*All fields marked in * are mandatory*

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1 The name of the company is

O POSITIVE HEALTH FOUNDATION

2 The registered office of the company will be situated in the State of

Delhi

3 (a) The objects to be pursued by the company on its incorporation are:

1. Primary Object ? Medical Relief
To promote, establish, support, organize and provide medical relief to economically weaker sections of society
by facilitating, arranging, sponsoring or conducting surgeries, medical treatments, diagnostic services, and healthcare interventions either free of cost or at subsidized rates for persons who are unable to afford such treatments.
2. Surgical & Critical Care Support
To identify poor and underprivileged patients requiring surgical or critical medical intervention and to provide
medical assistance, arrange hospitals, doctors, medicines, implants, and allied healthcare services for their
treatment.
3. Healthcare Access & Outreach
To organize medical camps, health check-up camps, surgical camps, awareness programs, and outreach
initiatives in rural and urban areas for early detection and treatment of diseases.
4. Medical Assistance & Aid
To provide grants, donations,

sponsorships, for medical treatment, hospitalization, surgeries, and rehabilitation of needy and deserving individuals.
5. Collaboration with Hospitals
To collaborate, partner, or enter into arrangements with hospitals, clinics, diagnostic centers, doctors, NGOs, and other institutions for providing medical services at concessional or free rates.
6. Emergency & Life-saving Support
To provide immediate medical assistance, emergency support, and facilitate life-saving treatments for underprivileged patients.
7. Preventive Healthcare & Awareness
To promote healthcare awareness, preventive healthcare, hygiene, and disease prevention through seminars, workshops, and campaigns.
8. Support Services
To provide support services such as medicines, blood donation facilitation, ambulance services, rehabilitation support, and post-treatment care.
9. Fundraising for Medical Causes
To raise funds, donations, grants, and contributions from individuals, corporates, institutions, CSR initiatives, and government bodies for achieving the above objectives.
10. To do all such acts, deeds, and things as are necessary or incidental for the attainment of the above objects, including opening bank accounts, acquiring movable/immovable property, hiring staff, entering agreements, and managing funds strictly for charitable purposes.

(b) *Matters which are necessary for furtherance of the objects specified in clause 3(a) are

1. To receive donations, grants, contributions, CSR funds, subscriptions or financial assistance from individuals, companies, trusts, institutions,

government or other lawful sources for furtherance of its objects.
2. To collaborate with government bodies, NGOs, trusts, companies or institutions in India or abroad for achieving the objects of the Company.
3. To acquire, lease or hire movable or immovable property necessary for carrying out the objects of the Company.
4. To invest funds of the Company in accordance with Section 11(5) of the Income TaxAct, 1961.
5. To do all lawful acts necessary or incidental for attainment of the above objects.
6. other objects as per section 8 company limited by capital.

the doing of all such other lawful things as considered necessary for the furtherance of the above objects:

Provided that the company shall not support with its funds, or endeavor to impose on, or procure to be observed by its members or others, any regulation or restriction which, as an object of the company, would make it a trade union.

4 *The objects of the company extend to the

whole of india

5 (i) The profits, if any, or other income and property of the company, when-so-ever derived, shall be applied, solely for the promotion of its objects as set forth in this memorandum.

(ii) No portion of the profits, other income or property aforesaid shall be paid or transferred, directly or indirectly, by way of dividend, bonus or otherwise by way of profit, to persons who, at any time are, or have been, members of the company or to any one or more of them or to any persons claiming through any one or more of them.

(iii) No remuneration or other benefit in money or money's worth shall be given by the company to any of its members, whether officers or members of the company or not, except payment of out-of-pocket expenses, reasonable and proper interest on money lent, or reasonable and proper rent on premises let to the company.

(iv) Nothing in this clause shall prevent the payment by the company in good faith of prudent remuneration to any of its officers or servants (not being members) or to any other person (not being member), in return for any services actually rendered to the company.

(v) Nothing in these clauses (iii) and (iv) shall prevent the payment by the company in good faith of prudence remuneration to any of its members in return for any services (not being services of a kind which are required to be rendered by a member), actually rendered to the company

6 No alteration shall be made to this memorandum of association or to the articles of association of the company which are for the time being in force, unless the alteration has been previously submitted to and approved by the Registrar.

7 The liability of the members is limited.

8. **Table applicable to Section 8/ Part I Section 8 company**

Table A / B / C

(A- MEMORANDUM OF ASSOCIATION OF A COMPANY LIMITED BY SHARES/
B - MEMORANDUM OF ASSOCIATION OF A COMPANY LIMITED BY GUARANTEE AND NOT HAVING SHARE CAPITAL/
C - MEMORANDUM OF ASSOCIATION OF A COMPANY LIMITED BY GUARANTEE AND HAVING SHARE CAPITAL)

A - MEMORANDUM OF ASSOCIATION OF A COMPANY LIMITED BY SHARES

Each member, undertakes to contribute to the assets of the company in the event of its being wound up while he is a member or within one year afterwards, for the payment of the debts or liabilities of the company contracted before he ceases to be a member and of the costs, charges and expenses of winding up, and for adjustment of the rights of the contributories among themselves such amount as may be required not exceeding a sum of Rs *

The share capital of the company is 100000 rupees, divided into

10000	Equity Share	Shares of	10	Rupees each	

9 True accounts shall be kept of all sums of money received and expended by the company and the matters in respect of which such receipts and expenditure take place, and of the property, credits and liabilities of the company; and, subject to any reasonable restrictions as to the time and manner of inspecting the same that may be imposed in accordance with the regulations of the company for the time being in force, the accounts shall be open to the inspection of the members. Once at least in every year, the accounts of the company shall be examined, and the correctness of the balance-sheet and the income and expenditure account ascertained by one or more properly qualified auditor or auditors

10 If upon a winding up or dissolution of the company, there remains, after the satisfaction of all the debts and liabilities, any property whatsoever, the same shall not be distributed amongst the members of the company but shall be given or transferred to such other company having objects similar to the objects of this company, subject to such conditions as the Tribunal may impose, or may be sold and proceeds thereof credited to the Rehabilitation and Insolvency Fund formed under Section 269 of the Act.

11 The Company can be amalgamated only with another company registered under section 8 of the Act and having similar objects.

☐ 12 We, the several persons, whose names and addresses are subscribed, are desirous of being formed into a company in pursuance of this memorandum of association:

Subscriber Details

S. No.	*Name, Address, Description and Occupation	DIN / PAN / Passport number	No. of equity shares taken	DSC	Dated
1	VAIBHAV BHATIA S/O RAKESH BHATIA R/O 6 ward No 6, /kahar Mohalla Nasirabad, Ajmer Nasirabad Rajasthan 305601	0*8*6*7*	4900 Equity,0 Preference	VAIBHAV BHATIA Digitally signed by VAIBHAV BHATIA Date: 2026.06.18 22:36:14 +05'30'	17/06/2026
2	AKSHAY BHATIA S/O RAKESH BHATIA R/O H No - 3121/6, Palsaniya Road, Nasirabad Nasirabad Rajasthan 305601	0*8*6*7*	5100 Equity,0 Preference	Akshay Bhatia Digitally signed by Akshay Bhatia Date: 2026.06.18 22:33:37 +05'30'	17/06/2026
Total shares taken			10000 Equity,0 Preference		

Signed before me					
Membership type of the witness	***Name of the witness**	***Address, Description and Occupation**	**DIN / PAN / Passport number / Membership number**	***DSC**	**Dated**
ACS	AKSHAY SHARMA	58 PRATAP NAGAR MULRIPURA JAIPUR	3*8*1	AKSHAY SHARMA Digitally signed by AKSHAY SHARMA	17/06/2026